

City Council

200 North Lake Street
Cadillac, Michigan 49601
Phone (231) 775-0181
Fax (231) 775-8755



Mayor
William S. Barnett

Mayor Pro-Tem
Art Stevens

Councilmembers
Douglas Mellema
Shari Spoelman
Tiyi Schippers

City Council Meeting

August 6, 2012 - 7:00 P.M.

CALL TO ORDER

PLEDGE OF ALLEGIANCE

ROLL CALL

I. APPROVAL OF AGENDA

II. PUBLIC COMMENTS

Public comments are limited to those items on the agenda, with the exception of public hearings. It is requested that comment time be limited to three (3) minutes.

III. CONSENT AGENDA

All items listed on the consent agenda are considered routine and will be enacted by one motion with roll call vote. There will be no separate discussion of these items unless a Council Member so requests it, in which event the item(s) will be removed from the consent agenda and discussed separately.

III.A. City Council Minutes From The Meeting Held July 16, 2012.

Documents: [CITY COUNCIL MINUTES - JULY 16, 2012.PDF](#)

III.B. Banner Request - United Way

Request from United Way of Wexford and Missaukee Counties to hang banner over Mitchell Street September 4-10, 2012 and September 24 - October 8, 2012.

Documents: [BANNER REQUEST - UNITED WAY.PDF](#)

III.C. Banner Request - Downtown Cadillac Association

Request from the Downtown Cadillac Association to hang banner over Mitchell Street September 10-24, 2012 for the Fall Fever Festival.

Documents: [BANNER REQUEST - DCA.PDF](#)

IV. PROCLAMATIONS

IV.A. Proclamation In Recognition Of Parkview Lanes.

Documents: [PROCLAMATION - PARKVIEW LANES.PDF](#)

V. PUBLIC HEARINGS

V.A. Public Hearing - Wexford County Road Commission Agreement

A public hearing to receive comments regarding the proposed agreement with the Wexford County Road Commission for improvements to the 13th Street/Plett Road intersection.

Documents: [ROAD COMMISSION AGREEMENT - RESOLUTION.PDF](#), [ROAD COMMISSION AGREEMENT.PDF](#)

VI. COMMUNICATIONS

VI.A. Request - Amvets Post 110

Request from Amvets Post 110 to close the parking lot between the Amvets building and Farm Bureau Insurance on W. Cass Street, on September 1, 2012 from 7:00 a.m. to 11:00 p.m. to raise funds by serving food and beverages, in conjunction with the Clam River yellow duck race, for the purchase of a van to transport veterans in need of medical care.

Documents: [REQUEST - AMVETS YELLOW DUCK RACE.PDF](#)

VI.B. Request - Downtown Cadillac Association

Request from Downtown Cadillac Association to close W. Harris Street from Lake Street to Elk Avenue on September 22, 2012 from 10:00 a.m. to 6:00 p.m. for a classic Car Show, close Lake Street between Harris and Pine Streets from 1:00 p.m. to 6:00 p.m. for parade set-up and to change the time of the parade to 4:00 p.m.

Documents: [REQUEST - FALL FEVER FESTIVAL.PDF](#)

VII. APPOINTMENTS

VII.A. Reappointment To The Local Development Finance Authority.

Documents: [LDFA APPOINTMENT.PDF](#)

VIII. CITY MANAGER'S REPORT

VIII.A. Continuation Of Forensic Audit Discussion.

Documents: [REHMANN UPDATE.PDF](#)

VIII.B. Public Safety Millage.

Documents: [COUNCIL COMMUNICATION - MILLAGE EDITORIAL.PDF](#)

VIII.C. Update On Sewer Services Discussion With Clam Lake Township DDA.

VIII.D. Request To Transfer Mayor Wedding Fees.

Request from Mayor Barnett to transfer \$650 from the wedding fund to Upbeat Cadillac for the Thursday evening concert series.

VIII.E. Recommendation Regarding Purchase Of Return Activated Sludge Pump.

Documents: [COUNCIL COMMUNICATION - WWTP PUMP.PDF](#)

VIII.F. Recommendation Regarding Street Marking Bid.

Documents: [COUNCIL COMMUNICATION - STREET LINE MARKING.PDF](#)

IX. INTRODUCTION OF ORDINANCES AND RESOLUTIONS

IX.A. Introduce Ordinance No. 2012-11, Vacation Of A Portion Of Webber Street.

Documents: [WEBBER STREET VACATION - RESOLUTION.PDF](#), [WEBBER STREET VACATION - ORDINANCE.PDF](#)

X. ADOPTION OF ORDINANCES AND RESOLUTIONS

XI. REPORTS OF BOARDS AND COMMISSIONS

XII. MINUTES OF BOARDS AND COMMISSIONS

XII.A. Cadillac Wexford Transit Authority

Documents: [CWTA - JUNE 21, 2012.PDF](#)

XII.B. Cadillac Planning Commission

Documents: [PLANNING COMMISSION - JUNE 25, 2012.PDF](#)

XII.C. Cadillac Downtown Development Authority/Business Improvement District

Documents: [DDA - JUNE 27, 2012.PDF](#)

XIII. PUBLIC APPEARANCES

XIV. TABLED ITEMS

XV. GOOD OF THE ORDER

XVI. ADJOURNMENT

PROCLAMATION

IN RECOGNITION OF PARKVIEW LANES

WHEREAS, on December 7, 1941, the day Pearl Harbor was bombed, John Lehman opened Parkview Lanes Bowling Center at 126 W. Harris Street, and

WHEREAS, In 1945 Norman W. & Jean H. Petersen bought Parkview Lanes having their son Norman J. along with his wife Priscilla T. Peterson run the thriving business until 1970, when Norman J. and Priscilla purchased it, and

WHEREAS, Keeping the business in the family, in 1994 Norman & Priscilla's son, Daniel and daughter, Darlene purchased the now landmark business and in 1997, Daniel and his wife Debra took over, and

WHEREAS, Soon the 5th generation will take over with ownership going to one of their daughters, and

WHEREAS Over the 67 years that the Petersen family has been in ownership of Parkview Lanes they have gone from pin boys setting the pins by hand with above ground ball returns and all hand scoring to fully automatic pin setters, underlane returns and computer scoring, and

WHEREAS The lanes have gone from wood to a synthetic Anvilane and from hard rubber balls to reactive resin balls with weight block designed to react differently for all lane conditions, and

WHEREAS Where once the lanes were hand oiled and buffed, which took 3 hours, now an automatic oiler strips and puts down the exact oil pattern for any condition in 15 minutes, now

THEREFORE, BE IT RESOLVED, That the city of Cadillac wishes to formally recognize and congratulate the Petersen family and Parkview Lanes Bowling Center on the anniversary of their 67th year of ownership and 71st successful year in the same location; and

BE IT FURTHER RESOLVED THAT I, William S. Barnett, Mayor of the City of Cadillac convey special recognition to

THE PETERSEN FAMILY

of Parkview Lanes and wish to thank them for their positive influence on the success of Cadillac's downtown on this the sixth day of August, 2012.

William S. Barnett, Mayor
City of Cadillac

City Council

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Cadillac, Michigan 49601
Phone (231) 775-0181
Fax (231) 775-8755



Mayor
William S. Barnett

Mayor Pro-Tem
Art Stevens

Councilmembers
Douglas Mellema
Shari Spoelman
Tiyi Schippers

RESOLUTION NO. _____

RESOLUTION APPROVING AGREEMENT BETWEEN THE WEXFORD COUNTY ROAD COMMISSION AND THE CITY OF CADILLAC FOR THE DESIGN, ENGINEERING AND CONSTRUCTION OF ROAD IMPROVEMENTS

At a regular meeting of the City Council of the City of Cadillac, Wexford County, Michigan, held in the Council Chambers, Cadillac Municipal Complex, 200 North Lake Street, Cadillac, Michigan, on the 6th day of August, 2012, at 7:00 p.m.

PRESENT: _____

ABSENT: _____

The following preamble and resolution was offered by _____ and seconded by _____.

WHEREAS, the Road Commission and the City met and developed a plan to improve traffic and safety at the intersection of Plett Road and Thirteenth Street (the "Project"), a portion of which is located within the City; and

WHEREAS, the Project includes, but is not limited to the construction of a "roundabout" at the intersection of Plett Road and Thirteenth Street; and

WHEREAS, the Road Commission has designed, engineered and will construct the Project in accordance with the plans and specifications on file with the City; and

WHEREAS, MCL 124.1 et seq. authorizes municipal corporations to enter into contracts with other municipal corporations "for the ownership, operation, or performance, jointly, or by any 1 or more on behalf of all, of any property, facility or service which each would have the power to own, operate or perform separately"; and

WHEREAS, the Road Commission sought and received partial funding for the Project through the Michigan Department of Transportation's Safety Program; and

WHEREAS, the Road Commission has requested that the City contribute Sixty Thousand Dollars (\$60,000) to the unfunded portion of the Project for the City's share of engineering, grant fund matching and construction engineering; and

WHEREAS, the City has determined that entering into this Agreement will benefit the health, safety and welfare of the City's residents by improving the traffic and safety at the intersection of Plett Road and Thirteenth Street.

NOW, THEREFORE, the City Council of the City of Cadillac, Wexford County, Michigan, resolves as follows:

1. The Agreement Between The Wexford County Road Commission And The City of Cadillac For The Design, Engineering And Construction of Road Improvements (the "Agreement," attached as Exhibit A) is hereby approved.

2. The Mayor and Clerk are authorized and directed to execute the Agreement on behalf of the City of Cadillac.

3. The Mayor and Clerk are authorized to make any changes to the Agreement in consultation with the City Attorney, provided that such changes do not increase the cost of the Project allocated to the City.

4. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

YEAS: _____

NAYS: _____

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, Christine L. Benson, City Clerk of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. 2012-____, duly adopted at a regular meeting of the City Council held on the 6th day of August, 2012.

Christine L. Benson
Cadillac City Clerk

**AGREEMENT BETWEEN THE WEXFORD COUNTY ROAD COMMISSION AND
THE CITY OF CADILLAC FOR THE DESIGN, ENGINEERING AND
CONSTRUCTION OF ROAD IMPROVEMENTS**

THIS AGREEMENT made and entered into this _____ day of _____, 2012, by and between the WEXFORD COUNTY ROAD COMMISSION (“Road Commission”), a Michigan municipal corporation, whose address is 85 West Highway M-115, Boon, Michigan 49618 and the CITY OF CADILLAC (“City”), a Michigan municipal corporation, whose address is 200 N. Lake Street, Cadillac, Michigan 49601.

WHEREAS, the Road Commission and the City met and developed a plan to improve traffic and safety at the intersection of Plett Road and Thirteenth Street (the “Project”), a portion of which is located within the City; and

WHEREAS, the Project includes, but is not limited to the construction of a “roundabout” at the intersection of Plett Road and Thirteenth Street; and

WHEREAS, the Road Commission has designed, engineered and will construct the Project in accordance with the plans and specifications on file with the City; and

WHEREAS, MCL 124.1 et seq. authorizes municipal corporations to enter into contracts with other municipal corporations “for the ownership, operation, or performance, jointly, or by any 1 or more on behalf of all, of any property, facility or service which each would have the power to own, operate or perform separately”; and

WHEREAS, the Road Commission sought and received partial funding for the Project through the Michigan Department of Transportation’s Safety Program; and

WHEREAS, the Road Commission has requested that the City contribute Sixty Thousand Dollars (\$60,000) to the unfunded portion of the Project for the City’s share of engineering, grant fund matching and construction engineering; and

WHEREAS, the City has determined that entering into this Agreement will benefit the health, safety and welfare of the City’s residents by improving the traffic and safety at the intersection of Plett Road and Thirteenth Street.

NOW, THEREFORE, for and in consideration of the mutual promises herein made by the parties hereto, it is mutually agreed as follows:

1. The Road Commission will design and construct the Project in substantial compliance with the plans and specifications on file with the City, which are made an integral and necessary part of this Agreement by reference as if fully set forth herein. Any substantial changes to the plans and specifications for the portion of the Project located within the City must be approved in writing by the City.

2. The Road Commission will pay, all cost and expenses, including but not limited to engineering, grant fund matching and construction engineering for the box culvert and all associated work. The City and the Road Commission will share equally in the cost and expenses of engineering, grant fund matching and construction engineering for the portion of the Project that relates to the "roundabout." Notwithstanding, the City's total share of the cost and expenses related to the "roundabout" shall be equal to or less than Sixty Thousand Dollars (\$60,000) and the City shall not be liable for any amount in excess of Sixty Thousand Dollars (\$60,000). Any cost overruns, change orders or similar charges in excess of the City's maximum cost of Sixty Thousand Dollars (\$60,000) shall be an obligation and paid by the Road Commission.
3. By executing this Agreement, and provided the Project is constructed as herein, the parties hereto grant to each other all easements necessary for the construction of the Project for use by the Public in accordance with the laws, rules and regulations established and enforced by the City.
4. By executing this Agreement the individuals executing this Agreement represent and warrant that each has the authority to enter this Agreement and to bind the Road Commission or the City to the terms and conditions contained herein.

IN WITNESS WHEREOF, the parties hereto have on the date first above written set their hands and seals.

CITY OF CADILLAC

By: _____
William S. Barnett, Mayor

By: _____
Christine L. Benson, Clerk

WEXFORD COUNTY ROAD COMMISSION

By: _____
Alan Cooper, Manger (WCRC)

By: _____
Karl Hanson, Engineer (WCRC)

AMVETS Post 110

127 West Cass Street

Cadillac, Michigan 49601

24 June 2012

Mayor Bill Barnett and Cadillac City Council Members.

107 N. Mitchell Street

Cadillac, Michigan 49601

Dear Bill and City Council Members.

AMVETS Post 110 is a longtime resident in the Cadillac area. Through fundraising, we continually support our veterans as needed. We are also active in community services that enhance the quality of life for this nation's citizens. We hold a congressional charter under Title 36 of the United States Code.

Recently, we had a meeting with a veteran who drives a van transporting veterans in need of medical care, to and from their appointments, in Veterans Hospitals in Saginaw, Battle Creek, Ann Arbor and Detroit. These veterans have no other means of transportation to and from their appointments. One volunteer driver racks up approximately 1200 miles per week. They have three vans with more than 130,000 miles each.

AMVETS Post members have come up with a unique and exciting idea to raise funds. Our idea is to have a Yellow Duck Race on the Clam River in the City of Cadillac. We plan to sell the ducks and to seek sponsors for this event. The race would begin at the Clam River Dam and end at Mitchell Street. Ducks will be marked and prizes, yet to be determined, would be handed out at the AMVETS. AMVETS plan to be open to the public for refreshments and drinks. We will request permission to close the parking lot behind the AMVETS for this event.

We will request permission from the city to use the Clam River and to remove debris and trim branches obstructing the raceway.

In order to accomplish this fundraiser, we will require assistance from the City of Cadillac, The Michigan Department of Natural Resources and Environmental Quality.

Once we get the go-ahead from the City and the other Departments above, we will obtain the necessary permits, licenses and insurance and have them completed prior to the duck race.

All proceeds of the Duck Race will be donated to the DAV Van project.

Your comments and suggestions are welcome.

Respectfully,

A handwritten signature in black ink, appearing to read 'DH', with a large, stylized flourish extending from the end.

DOUG HALL, Post 180 Commander

PH: 231-920-6430



Google earth

feet 600
meters 200



SITE PLAN
CADILLAC FESTIVAL OF RACES SATURDAY SEPTEMBER 1, 2012

AmVets Food + Beer Sales in Parking Lot.

RUBBER DUCK RACE - FROM DAM TO HYNES ST. BRIDGE

August 6, 2012

COUNCIL COMMUNICATION

Re: Appointment to the Local Development Finance Authority

It is recommended that the board member listed below, who has expressed an interest in continuing to serve, be considered for reappointment.

<u>Name</u>	<u>Board</u>	<u>Term Length</u>	<u>New Term Expiration</u>
Pat Briggs	LDFA	4 years	8/7/2016

Pat was first appointed in 2001.

Marcus Peccia

From: Bill Edwards <Bill.Edwards@rehmann.com>
Sent: Wednesday, August 01, 2012 4:38 PM
To: Marcus Peccia
Subject: City Council Meeting July 16

Marcus,

I would like for you to share with the City Council that I had an opportunity to view the presentation made by David McCurdy to the council on July 16. I found the majority of the presentation to be on point with respect to the events that led up to the council voting to contract with Rehmann to conduct the audit of the legal fees charged by the law firm from 1993 thru June 30, 2010.

There was one specific part of the presentation which caused some concern on my part. Mr. McCurdy made reference to Mr. William Barnett and commented that Mr. Barnett was responsible for changing the scope of the Rehmann audit. My response to that statement is that at no time has Mr. Barnett personally directed me or anyone on the Rehmann team to change the scope of the audit. I would also add that our audit scope has never changed from the language contained in the January 20, 2012, forensic audit proposal.

We have completed the review of all city documents made available to us and are in the process of compiling our report. I will be back in contact upon its completion and we can schedule a date for the summary presentation.

Best regards,

William Edwards
Director of Financial Investigations

 **Rehmann**
Corporate Investigative Services
1500 W. Big Beaver Road
2nd Floor
Troy, Michigan 48064
Phone: 248.614.6452
Mobile: 248.953.1748
Fax: 248.267.8456
Email: bill.edwards@rehmann.com
www.rehmann.com

NOTICE TO PERSONS SUBJECT TO UNITED STATES TAXATION:

DISCLOSURE UNDER TREASURY CIRCULAR 230: The United States Federal tax advice, if any, contained in this document and its attachments may not be used or referred to in the promoting, marketing, or recommending of any entity, investment plan, or arrangement, nor is such advice intended or written to be used, and may not be used, by a taxpayer for the purpose of avoiding Federal tax penalties.

This e-mail and any attachments are intended for the sole use of the addressee listed. It may contain confidential, proprietary and/or legally privileged information. If you are not the intended recipient please notify the sender by return e-mail or call our corporate Information Technology Division at (989) 799-9580 and delete the e-mail. Unauthorized use,

dissemination, distribution or copying of this e-mail or attachments, in whole or in part is strictly prohibited and may be unlawful. When addressed to our clients any opinions or advice contained in this e-mail are subject to the terms and conditions included in specific engagement letters or contracts. Please note that e-mails are susceptible to change and we shall not be responsible or liable for the proper and complete transmission of the information contained in this e-mail, any delay in its receipt or damage to your systems. We do not guarantee that the integrity of this e-mail has been maintained or that this e-mail is free of viruses, interception or interference.

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Mayor
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Tiyi Schippers

RESOLUTION NO. _____

RESOLUTION TO INTRODUCE ORDINANCE VACATING A PORTION OF WEBBER STREET AND RESERVING A UTILITY EASEMENT IN FAVOR OF THE CITY OF CADILLAC

At a regular meeting of the City Council of the City of Cadillac, Wexford County, Michigan, held in the Council Chambers, Cadillac Municipal Complex, 200 North Lake Street, Cadillac, Michigan, on the 6th day of August, 2012, at 7:00 p.m.

PRESENT: _____

ABSENT: _____

The following preamble and resolution was offered by _____ and seconded by _____ .

WHEREAS, the City of Cadillac ("City") is authorized by statute to control its streets, alleys, and public ways, and thereby has the authority to vacate such streets, alleys, and public ways (MCL 117.4h; *Detroit Edison Co v City of Detroit*, 208 Mich App 26, 33; 527 NW2d 9 (1994)); and

WHEREAS, the Charter of the City of Cadillac provides that the City may, by ordinance and upon the affirmative vote of four or more members of the Council, "vacate, discontinue or abolish any highway, street, lane, alley or other public place, or part" (Charter Sec. 5.6); and

WHEREAS, the Charter further provides that before final adoption of such an ordinance, the Council shall hold a public hearing and shall publish notice once at least twenty (20) days and again ten (10) days prior to the hearing; and

WHEREAS, the City of Cadillac owns an interest in a particular portion of a public street commonly known as Webber Street between North Mitchell Street and Burlingame Street described on Exhibit A to the proposed ordinance ("Portion of Webber Street"), which is located within the City; and

WHEREAS, the City wishes to consider adopting an ordinance vacating the Portion of Webber Street but reserving to the City a utility easement under, over or through the Portion of Webber Street for the purpose of constructing, installing, operating, maintaining or repairing any and all public or private utilities, including water, sewer, gas, electric, cable, fiber optic, telecommunications and any similar public or private utilities, and authorizing the Mayor, City Clerk, and City Attorney to execute any and all documents necessary to reserve such easement.

NOW, THEREFORE, the City Council of the City of Cadillac, Wexford County, Michigan, resolves as follows:

1. Pursuant to Section 5.2 and 5.6 of the City Charter, the City introduces Ordinance No. 2012-11, Ordinance Vacating a Portion of Webber Street and Reserving a Utility Easement in Favor of the City of Cadillac (the "Ordinance," attached as Exhibit A).

2. A public hearing regarding the Ordinance shall be held on the 4th day of September, 2012, at 7:00 p.m. in the Council Chambers, Cadillac Municipal Complex, 200 Lake Street, Cadillac, Michigan.

3. The City Clerk is directed to publish a summary of the Ordinance in a newspaper of general circulation in the City of Cadillac, together with a notice setting the time and place for a public hearing on the Ordinance, in accordance with the Charter. The summary and notice of the hearing shall be substantially in the form of Exhibit B.

4. A copy of the Ordinance shall be available for examination at the office of the City Clerk, and copies may be provided for a reasonable charge.

5. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

YEAS: _____

NAYS: _____

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, Christine L. Benson, City Clerk of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. ____, duly adopted at a regular meeting of the City Council held on the 6th day of August, 2012.

Christine L. Benson
Cadillac City Clerk

City Council

200 North Lake Street
Cadillac, Michigan 49601
Phone (231) 775-0181
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Mayor
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Art Stevens

Councilmembers
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ORDINANCE NO. 2012-11

**ORDINANCE VACATING A PORTION OF WEBBER STREET
AND RESERVING A UTILITY EASEMENT IN FAVOR OF THE CITY OF CADILLAC**

THE CITY OF CADILLAC ORDAINS:

Section 1.

Pursuant to MCL 117.4h, the Charter of the City of Cadillac, and other applicable authority, the City hereby vacates and abandons a portion of the public street commonly known as Webber Street between North Mitchell Street and Burlingame Street located in the City and described on Exhibit A, attached hereto, except that the City hereby reserves to itself a utility easement under, over or through that portion of Webber Street described on Exhibit A for the purpose of constructing, installing, operating, maintaining or repairing any and all public or private utilities, including water, sewer, gas, electric, cable, fiber optic, telecommunications and any similar public or private utilities.

Section 2.

The Mayor and City Clerk or the City Attorney are hereby authorized to execute any and all documents necessary to vacate that portion of Webber Street described on Exhibit A and to reserve the utility easement described herein including, but not limited to, giving the City's consent to entry of a judgment or order quieting title to that portion of Webber Street described on Exhibit A.

Section 3.

All other ordinances inconsistent with the provisions of this Ordinance are hereby repealed but only to the extent necessary to give this Ordinance full force and effect.

Section 4.

This Ordinance shall take effect twenty (20) days after its adoption and publication.

Approved this ____ day of _____, 2012.

Christine L. Benson, Clerk

William S. Barnett, Mayor

I, Christine L. Benson, City Clerk of the City of Cadillac, Michigan, do hereby certify that Ordinance No. 2012-11 was published in the Cadillac News on the ____ day of _____, 2012.

Christine L. Benson, City Clerk

EXHIBIT A

LEGAL DESCRIPTION OF PUBLIC ALLEY

and described as follows, to-wit: Commencing at a point in the east line of Haring street thirty-eight (38) feet north of the south-west corner of lot 6 Block U of G.A. Mitchell's plat of the north-east quarter of section 33 T22NR9W as the same is of record in the office of the Register of Deeds for Wexford Co: Thence Easterly at right-angles to Haring Street three-hundred (300) feet: Thence Southerly parallel to Haring streetsixty-six (66) feet: Thence Westerly at right-angles to Haring street three-hundred (300) feet: Thence Northerly along the east line of Haring street sixty-six (66) feetto beginning. The above described land is to be used by the public for highway purposes only and if used for any other purpose it is to revert to the party of the first part, his heirs, and assigns.

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NOTICE OF PROPOSED ORDINANCE AND PUBLIC HEARING

The City of Cadillac hereby gives notice of proposed Ordinance No. 2012-11, Ordinance Vacating a Portion of Webber Street and Reserving a Utility Easement in Favor of the City of Cadillac.

NOTICE IS HEREBY GIVEN that a Public Hearing on the proposed ordinance will be held in the Council Chambers, Cadillac, Municipal Complex, 200 Lake Street, Cadillac, Michigan, on September 4, 2012, at 7:00 p.m., at a rescheduled Regular Meeting of the City Council. The City of Cadillac complies with the "Americans with Disabilities Act." If auxiliary aids or services are required at a public meeting for individuals with disabilities, please contact Chris Benson, City Clerk, at least three (3) business days prior to any such meeting. Copies of the proposed ordinance are available for examination at the office of the City Clerk and copies may be provided at a reasonable charge. The following is a summary of the proposed ordinance.

ORDINANCE VACATING A PORTION OF WEBBER STREET AND RESERVING A UTILITY EASEMENT IN FAVOR OF THE CITY OF CADILLAC

Section 1 of the proposed ordinance provides that pursuant to MCL 117.4h, the Charter of the City of Cadillac, and other applicable authority, the City vacates and abandons a portion of Webber Street legally described on Exhibit A to the ordinance, which portion is generally located between North Mitchell Street and Burlingame Street, except that the City reserves to itself a utility easement under, over or through that portion of Webber Street described on Exhibit A for the purpose of constructing, installing, operating, maintaining or repairing any and all public or private utilities, including water, sewer, gas, electric, cable, fiber optic, telecommunications and any similar public or private utilities.

Section 2 of the proposed ordinance authorizes the Mayor, Clerk, and City Attorney to execute any and all documents necessary to vacate the portion of Webber Street and reserve the easement in favor of the City.

Section 3 of the proposed ordinance provides that other ordinances inconsistent with the provisions of the ordinance are repealed but only to the extent necessary to give the ordinance full force and effect.

Section 4 of the proposed ordinance provides that it will take effect 20 days after adoption and publication.

CITY COUNCIL OF THE
CITY OF CADILLAC, MICHIGAN

By: Chris Benson, City Clerk
Cadillac Municipal Complex
200 Lake Street
Cadillac, Michigan 49601
Telephone No: (231) 775-0181

**Cadillac/Wexford Transit Authority
951 Casa Road
Cadillac, Michigan 49601**

Board Meeting Minutes

June 21, 2012

I. Call to Order: 4:30 p.m.

II. Roll call: Board Members – Craig Taylor, Ramona Paddock, , Norm Husted
Charlotte Nisbet, Fran Okoren

CWTA Staff – Vance Edwards
Wexford County Liaison – Dan O’Riley

III. Pledge of Allegiance

IV. Public Comment

None.

V. Approval of May 9, 2012 Meeting Minutes

Husted made the motion to accept the minutes. Support by Nisbet. All in favor.
Motion carried.

VI. Approval of Invoices

Members reviewed the invoices. Edwards clarified all inquiries.
Husted made the motion to accept the invoices as presented. Support by Taylor.

Roll Call: Paddock - yes, Taylor - Yes, Nisbet – yes, Okoren – yes , Husted - yes.

Motion carried.

VII. Financial Report

Edwards reviewed the fund balances. Taylor mentioned the possibility of increasing the monthly deposits to the Building Improvement Account in the future after the Capital Reserve Account reaches \$60,000. The members agreed with this concept.

VIII. Director's Report

Edwards reviewed updates and highlights from the previous month.

Edwards did review the damage that was caused by two (2) lightning strikes in May. Many pieces of maintenance equipment and technology equipment were affected. There is a need to update the phone system which also took a direct hit. Options were internally received and reviewed. Edwards requested that an updated phone system be purchased and installed for the cost of \$2,619.95. in lieu of major repairs to the outdated system. Networking Butler who currently maintains the informational technology (IT) equipment for CWTA would perform the work. Okoren made the motion to purchase the new phone system as recommended. Paddock inquired about reliability and warranty. Further discussion took place. Paddock supported the motion.

Roll call: Paddock - yes, Taylor - yes, Nisbet - yes, Okoren – yes, Husted – yes
Motion carried.

IX. Personnel Committee

The Personnel Committee will meet in the future to review the effectiveness of the current dispatch operation.

X. Building Committee

Nothing to report.

Old Business: None.

New Business: None.

Adjournment: Taylor made the motion to adjourn at 6:05 p.m. Supported by Nisbet. All in favor.
Motion carried.

Next Meeting: Thursday, July 19, 2012 @ 4:30 p.m. in the CWTA Board Room.

Board Secretary

Date Approved

CADILLAC WEXFORD TRANSIT AUTHORITY

INVOICES	EXPLANATION	April-12	May -12	June-12	TOTAL
PAYROLL 8	CWTA PAYROLL	36,176.72			36,176.72
PAYROLL 9	CWTA PAYROLL	38,805.83			38,805.83
PAYROLL 10	CWTA PAYROLL		38,296.23		38,296.23
PAYROLL 11	CWTA PAYROLL		38,924.76		38,924.76
PAYROLL 12	CWTA PAYROLL			38,064.16	38,064.16
PAYROLL 13	CWTA PAYROLL			38,539.10	38,539.10
ACCIDENT FUND	WORKERS COMP	7,204.26	7,204.26	7,204.26	21,612.78
ACCURATE DRIVER TEST.	CDL TESTS LEWIS, DEMING			200.00	200.00
ACE COMMUNICATIONS	BUCKLEY PHONE SERVICE	124.64	161.66	140.04	426.34
ADT SECURITY SERVICES	ANNUAL FEE - TOWER			388.58	388.58
ADVANCED MECHANICAL	BOILER REPAIR	1,704.04			1,704.04
ALL BEANS COFFEE	BREAKROOM COFFEE	58.45	88.45	98.75	245.65
ARAMARK	UNIFORMS	572.75		64.98	637.73
ARNOLD	JANITOR SUPPLIES	129.47	563.86	303.83	997.16
ARROW UNIFORM	SHOP RAGS	75.82	76.33	76.33	228.48
ARTS AUTO ELECTRIC	MAINT. SUPPLIES	1,167.11	806.78	980.26	2,954.15
AVSTAR INCORPORATED	WINDBREAKERS	417.00	1,027.69	1,164.83	2,609.52
AW WELDING	REPAIRS		90.00		90.00
BAIRD, COTTER & BISHOP	QUARTERLY REPORTS		670.00		670.00
BLARNEY CASTLE	BTC PROPANE		600.70		600.70
BODMAN LLP	UNION, BANNED CUSTOMER	1,021.25	1,171.33		2,192.58
BREIDENSTEIN OIL	BULK OIL & TRANS. FLUID		1,005.15	523.15	1,528.30
BRIAN DRAPER	ANNUAL MECH. LICENSE REIM.		20.00		20.00
BUCKLEY GEN. STORE	MAINTENANCE SUPPLIES	42.44	36.14	31.58	110.16
BTYEJUMPER LLC	UNTANGLE SERV. INSTALLED		899.00		899.00
CADILLAC GARAGE DOOR	REPAIRS BOTH SITES		131.00	75.00	206.00
CAD/GRAYLING OCC. HEALTH	EMPLOYEE MEDICAL	188.64	614.29	151.16	954.09
CADILLAC NEWS	PAPER & WEBSITE	43.00	43.00	45.60	131.60
CADILLAC PLUMBING/HEATING	MAINTENANCE SUPPLIES	43.32		43.32	86.64
CADILLAC SIGNS	BUS 302 LOGO			10.00	10.00
CADILLAC TIRE	TIRES/REPAIRS	15.00			15.00
CADILLAC UTILITIES	WATER & SEWER	143.88	130.42	150.66	424.96
CADILLAC VACUUM	SWEEPER FOR DISPATCH		69.99		69.99
CAD. WHOLESALE TIRE	TIRES	622.14	2,125.67	522.40	3,270.21
CARQUEST AUTO PARTS	MAINTENANCE SUPPLIES		36.00		36.00
CHARTER COMMUNICATIONS	BUNDLED SERVICES		914.91		914.91
CHROUCH COMMUNICATION	RADIOS FOR NEW BUSES	43.10	1,762.00	145.00	1,950.10
CINDY FALES	SR. EXPO DISPLAY			54.26	54.26
CITY GLASS SHOP	BUS MIRROR REPLACEMENT		37.50	13.75	51.25
CONSUMERS	ELECTRICITY	2,515.13	1,951.56	2,081.34	6,548.03
CRYSTAL FLASH	ON-SITE FUEL	26,148.61	25,828.74	24,054.03	76,031.38
CRYSTAL MOUNTAIN RESORT	MICH. PUBLIC TRANSIT CONF.			421.83	421.83
CWTA-PETTY CASH	MISC. EXPENSE			145.62	145.62
CWTA PRESCRIPTION REIMB.	REPLENISH BACT TO \$200			200.00	200.00
DENTAL HEALTH PROF.	V. EDWARDS			6.70	6.70
DEPT OF TREASURY	MI TAX WITHOLDING	2,799.64	2,843.87	2,997.61	8,641.12
DISCOUNT SHOWCASES	DISPLAY CASE		1,024.16		1,024.16
DON'S AUTO CLINIC	REPAIRS, OIL CHANGE		256.76		256.76
DTE	GAS SERVICE	306.72	1,133.85	108.44	1,549.01
EAST BAY MEDICAL	DRUG & ALCOHOL TESTING	255.00	420.00		675.00
ENGINEERED PROTECTION	ALARM MONITORING & SVC.	751.00		702.00	1,453.00
4M COMMUNIATIONS	PAY PHONE			110.00	110.00
FOX MOTORS	BUS PARTS	691.62			691.62

GALLS		UNIFORMS	120.95	176.93	64.97	362.85
GEORGE GUFFEY		BUCKLEY MONTHLY RENT	1,300.00	1,013.75		2,313.75
GEORGE GUFFEY		BUCKLEY ELECTRIC	430.38	229.45	188.64	848.47
GREGORY FINSTROM		USED FILE CABINET		40.00		40.00
HOLLAND BUS		BUS PARTS	1,002.20	966.14	201.44	2,169.78
HOME DEPOT		MAINT. SUPPLIES	572.11	500.65	655.22	1,727.98
HOPE NETWORK		JANITORIAL SERVICE	1,670.25	1,495.50	1,536.75	4,702.50
HURST MECHANICAL		BOILER TESTING	315.00			315.00
ILLINOIS PAYPHONE SYST.		INDIAN TRAILS PAYPHONE	302.50			302.50
INFINISOURCE		ANNUAL COBRA FEE		770.00		770.00
INTEGRITY BUSINESS SOL.		OFFICE SUPPLIES	402.36	149.63	264.14	816.13
INTERSTATE BATTERY		BATTERIES		507.76		507.76
JON'S AUTOMOTIVE REPAIR		BALANCE TIRES	60.00	120.00	80.00	260.00
KEN KONING		EMPLOYEE COUNSELING	750.00			750.00
KIRT'S MUFFLER SHOP		BUS PARTS		266.50	35.00	301.50
LAERDAL MEDICAL CORP.		CPR WORKBOOKS			293.36	293.36
LASER PRINTER TECH.		NEW COPIER & TONER	43.00	314.00	1,265.00	1,622.00
MACLELLAN MECHANICAL		AIR CONDITIONING REPAIR	286.25			286.25
MARRIOTT SPRINGHILL STES.		PASS CERTIFICATION LODG.			413.40	413.40
MEIJER		5 PRE-PAID CARDS		500.00		500.00
MERCY HOSPITAL		CPR ROSTER FEE/CARDS		47.00		47.00
MERS		PENSION FUND	4,740.37	4,361.10	4,701.09	13,802.56
MERS		HEALTH PLAN	296.00	296.00	296.00	888.00
MERS		VALUATION REPORT			500.00	500.00
MICHIGAN TRANSIT POOL		LIABILITY INSURANCE		10,440.00		10,440.00
MICHIGAN TRANSIT POOL		D INSURANCE				0.00
MIKE'S BODY SHOP		LABOR AND REPAIRS	2,019.00			2,019.00
MPTA		PASS CERT. REGISTRATIONS			150.00	150.00
MPTA		MICH TRANSIT CONF. REG.			155.00	155.00
MTS		BUSSES		62,114.00		62,114.00
NAPA OF CADILLAC		PARTS		165.91	210.03	375.94
NAT'L. SAFETY COUNCIL		ANNUAL DUES	325.00	450.00		775.00
NETWORKING BUTLER		IT SERVICES	49.99	655.00	5,647.10	6,352.09
NORGE VILLAGE		UNIFORM CLEANING/REPAIRS		143.42		143.42
NORTHERN FIRE & SAFETY		ANNUAL FIRE EXT. INSPECT.		256.00		256.00
NORTHERN LAKES CMH		CONFERENCE REG.		200.00		200.00
NORTHERN STAFFING		CHARLES RAAB EMPLOY	3,584.09	3,155.01	2,524.85	9,263.95
OKOREN, FRANCES		MILEAGE			41.64	41.64
PC TRANS		SOFTWARE RENTAL		437.00	437.00	874.00
PETERSON'S TOWING		TOWING SERVICE	117.00	202.00	302.00	621.00
PKB ARCHITECTS		COLD STORAGE/WASH BAY	4,422.50	837.50	5,512.50	10,772.50
PRINTMASTERS		LAKE CITY SVC. POSTER			185.80	185.80
QQEST SOFTWARE		ANNUAL TIMECLOCK UPDATE	429.00			429.00
QUARTERMASTER		UNIFORMS	98.65		366.85	465.50
QUICK-CONNECT		TELEPHONE SERVICE	44.92	44.92	44.92	134.76
RAMONA PADDOCK		MILEAGE		28.86	14.44	43.30
REEFER SERVICE, INC.		BUS 34 CONDENSER			1,910.27	1,910.27
ROAD EQUIP. PARTS		PARTS	8.16			8.16
ROBERT VANDEWATER		ANNUAL MECH. LICENSE REIM.		20.00		20.00
RONALD BRADBURN		CDL REIMBURSEMENT	23.00			23.00
SBAM		EMP. INSURANCE	16,121.57	14,906.66	15,665.96	46,694.19
SHELL		GAS DIRECTOR'S VEHICLE	317.15	332.85	376.15	1,026.15
SHERWIN-WILLIAMS		PARKING LOT PAINT		60.54		60.54
SONDEE, RACINE & DOREN		RIGHT OF WAY TITLE SEARCH	801.79	1,961.90	2,535.51	5,299.20
STAMPS.COM		POSTAGE	226.65			226.65
STANDARD INSURANCE		LIFE & ADD INS.	58.65	58.65	58.65	175.95

STATE OF MI		UNEMPLOYMENT TAX	9,622.47			9,622.47
STATE OF MI		DRIVERS LIC. SVC.	63.00	21.00	35.00	119.00
TC GOLF CARTS, INC		CART RENTAL FOR SR. EXPO			205.00	205.00
TEAMSTERS LOCAL 214		UNION DUES	478.00	478.00	555.00	1,511.00
THIRLBY AUTOMOTIVE		MAINTENANCE SUPPLIES	38.68	85.07		123.75
TOM ARMOUR		BTC MAINTENANCE SVCS.		60.00		60.00
T & S TRUCK SERVICE		MAINT. SERVICES/SUPPLIES		1,760.55	711.18	2,471.73
U.S. FIRE SAFETY		DONATION			95.00	95.00
UNUM LIFE INSURANCE		LIFE AND STD. INS.	1,606.78	1,454.52		3,061.30
VANCE EDWARDS		MEETINGS, LUNCHES, MISC.		266.32	98.67	364.99
VERTICAL SCH. PARTNERS		PUBLIC TRANSIT SAFETY TRAIN.		716.95		716.95
VERIZON		WIRELESS PHONE CHARGES	138.72	122.44	119.39	380.55
VESCO OIL		POWER WASH. CONTRACT		66.25		66.25
VOELKER IMPLEMENT		MAINTENANCE PARTS	70.02	29.95		99.97
WASTE MGT. OF MICH		DISPOSAL SERVICE	148.48	148.15	147.26	443.89
WEXFORD C.O.A.		SENIOR EXPO REGISTRATION	200.00			200.00
WEX. PUBLIC WORKS		WATER & SEWER	124.84	121.90	353.18	599.92
TOTALS			175,496.06	244,521.79	168,771.93	588,789.78
						588,789.78

CADILLAC/WEXFORD TRANSIT AUTHORITY
ACCOUNT BALANCES
6-30-12

	<u>APRIL</u>	<u>MAY</u>	<u>JUNE</u>	
CITIZENS BANK OPERATING	\$399,572	\$228,760	\$241,419	
CITIZENS BANK - BUILDING IMPROVEMENT ACCOUNT	\$119,791	\$120,797	\$121,801	
CITIZENS BANK CAPITAL RESERVE ACCOUNT	\$30,055	\$32,055	\$34,055	
TOTAL:	<u>\$549,418</u>	<u>\$381,612</u>	<u>\$397,275</u>	<u></u>

CWTA LINKS THE "BEST WITH THE BEST"

The Cadillac/Wexford Transit Authority (CWTA) has a mission of "providing the highest quality of safe, accessible, and reliable public transportation services while creating new opportunities and partnerships for improved quality of life."

This summer, CWTA entered into a unique partnership with *The Northern Camper* to provide seasonal transportation service linking Lake City located in Missaukee County to the Cadillac area in neighboring Wexford County. This service started **June 4** and will go through **September 1**.



Lake City Riders leave the driving to CWTA!

Bus service is offered four (4) times daily and stops at the Missaukee County District Library and the Missaukee County Park. This was developed with the intent to create travel opportunities between two towns in rural communities which are located in different counties. The Northern Camper and CWTA has an interest in showcasing these beautiful

areas by providing a seamless travel opportunity to get there. Contact CWTA at **231-779-0123** or **866-647-5465** for further inquiries. ✦

The "Heart" of Rails-to-Trails

Reed City Crossroads

Reed City Area Chamber • 200 N. Chestnut
231-832-5431 • reedcity.org • info@reedcity.org

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CITY COUNCIL MINUTES

July 16, 2012

The Cadillac City Council met in a regular meeting on Monday, July 16, 2012 at 7:00 p.m. in the Council Chambers of the Municipal Complex, 200 N. Lake Street, Cadillac, Michigan.

COUNCIL PRESENT: Spoelman, Schippers, Stevens, Mellema, Mayor Barnett

COUNCIL ABSENT: None

Staff present: Peccia, Homier, Adams, Dewitt, Benson

APPROVAL OF AGENDA

Council Member Schippers asked for the agenda to be amended to add Dave McCurdy under the PUBLIC COMMENTS section to allow him to address council for longer than the three minute limit.

2012.174 Agenda approved as amended

Motion was made by Schippers and supported by Spoelman to approve the agenda as amended.

Motion unanimously approved.

PUBLIC COMMENTS

Dave McCurdy, Attorney with McCurdy, Wotila & Porteous, and former city attorney for the City of Cadillac addressed council. McCurdy said he asked to address council because the public has the right to know about actions taken by the Mayor regarding the forensic audit. Mr. McCurdy said the original audit request was for review of each yearly contract and rates in each contract that involved his firm from 1993 to 2009 and things have happened that have been kept from the public and council. Mr. McCurdy further stated that the auditors advised that many records are illegible or missing, they cannot do a full audit, and that they will now use the old 1993 contract rates for the audit, not all sixteen contracts for all sixteen years. Mr. McCurdy additionally stated that the audit won't cost the original \$10,000, but will be \$20,000 to \$30,000.

Mr. McCurdy then presented information regarding the council's former attorney, Peter Letzmann, who was hired as an independent counselor to review prior agreements and billings. Mr. McCurdy advised that it was determined that since the 1970's, the city contracts should have been signed by the clerk and mayor, they were signed by the city manager, and that their firm's yearly contracts also were approved the same way. It was further stated that attorney Letzmann said the fault was to be shared by the law firm, the city administration, the annual auditors, and by city council, but that the firm took responsibility and accepted Mr. Letzmann's findings that resulted in a settlement agreement with the city. Mr. McCurdy then mentioned that the Mayor and Council Member Stevens were responsible for this current review, even though the matter was previously settled and full records aren't available.

Lastly, Mr. McCurdy addressed council with concerns that the forensic auditor is not following the original scope, but taking direction from the mayor on how to analyze the available data, and that the public is unaware.

Sharon King, 407 Crippen Street, spoke against the construction of the 13th Street/Plett road roundabout saying it will be a glorified 4-way yield. Mayme Guthrie, E.M-55, was concerned about the heavy fog in that area. Julie Theobald, 926 Sundberg and Ron Weaver, Cecil Road also spoke against the roundabout.

CONSENT AGENDA

2012.175 Consent agenda approved

Motion was made by Stevens and supported by Mellema to approve the consent agenda consisting of the City Council minutes from the regular meeting held July 2, 2012.

Motion unanimously approved.

PROCLAMATIONS

PUBLIC HEARINGS

At 7:29 p.m., Mayor Barnett opened a public hearing to consider the request from the Wexford County Historical Society and Museum for adoption of a long-term lease agreement of the museum. City Manager Peccia said the lease agreement would be between the City of Cadillac and the Wexford County Historical Society. They are requesting a 99-year lease with an option to buy. Peccia said there is a reversion clause in the lease if the buildings use should change in the future. Nan Taylor, Wexford County Historical Society member and past president, said the historical society has been in the building for 30 years and in the past two years they have put approximately \$250,000 into it. She said the long-term lease will enhance their fund-raising efforts. She also introduced board members Richard Harvey and Rod Grostick. The public hearing closed at 7:35 p.m.

2012.176 Adoption of lease agreement approved

Motion was made by Schippers and supported by Spoelman to approve Resolution No. 2045 to adopt Ordinance No. 2012.09, lease agreement with the Wexford County Historical Society and Museum.

Motion unanimously approved.

COMMUNICATIONS

APPOINTMENTS

2012.177 Coffey reappointed to DDA

Motion was made by Spoelman and supported by Mellema to reappoint Tim Coffey to the Downtown Development Authority for a 4-year term to expire August 16, 2016.

Motion unanimously approved.

CITY MANAGER'S REPORT

City Manager Peccia told council the cost to the city of \$60,000, which is in the agreement with the Wexford County Road Commission, was included in the budget approved by council. He stated that in 2009, in a letter from the former city manager to Mr. Jim D'Lamater of the safety division of MDOT, the former city manager approved the 13th Street Corridor Improvement Plan which resulted in the roundabout. No documentation has been found except the short letter.

Alan Cooper, Manager of the Wexford County Road Commission, explained to council the reasons for the safety grant application. He said accident history showed an average of 9 to 12 accidents at the intersection. After the four-way stop was put up there were 7 accidents from the end of May to October. A video explaining a roundabout's safety features and how it works was shown. He also said the cross walks will be safer because there is an island in the middle of the road so the pedestrian only has to cross one lane at a time. Council Member Schippers asked what would happen if the city backed out of the agreement. Cooper said the roundabout will still be constructed. Council Member Mellema said he would feel more comfortable with the city attorney's opinion on the validity of the letter. Council Member Spoelman said the city made the commitment and it won't bode well if we back out of our partnership. Council Member Stevens said he wants to see the grant. Mayor Barnett said he would like to see the history of the grant application. City Attorney Homier told council that the question is not if the roundabout is going to happen, but whether the city will pay its share of the project.

2012.178 Approval of agreement denied

Motion was made by Spoelman and supported by Schippers to approve the agreement with the Wexford County Road Commission for the 13th Street/Plett Road roundabout.

Ayes: Spoelman, Schippers

Nays: Stevens, Mellema, Mayor Barnett

Motion denied.

2012.179 Public hearing set

Motion was made by Stevens and supported by Mellema to set a public hearing for August 6, 2012 for public input on the roundabout.

Ayes: Stevens, Mellema, Mayor Barnett

Nays: Spoelman, Schippers

Motion carried.

2012.180 Special meeting set

Motion was made by Schippers and supported by Mellema to set a special meeting for August 6, 2012 at 5:30 p.m. for the purpose of going into closed session to discuss a written legal opinion.

Ayes: Schippers, Stevens, Mellema, Mayor Barnett

Nays: Spoelman

Motion carried.

Bruce DeWitt, Director of Public Works/City Engineer, explained that a change order is needed for the 2012 Carmel Street Improvement Project due to quantity changes in the amount of \$9,095.58. Funds are available in the Water and Sewer Fund.

2012.181 Change order approved

Motion was made by Spoelman and supported by Schippers to approve the 2012 Carmel Street Improvement Project change order in the amount of \$9,095.58.

Motion unanimously approved.

The Downtown Cadillac Association has requested the city allow 16 sandwich board type signs to be used to announce upcoming downtown events and festivals. Jerry Adams, Community Development Director addressed council explaining that the Planning Commission is in the process of amending the off-premise sign ordinance. Adams suggested approval with the following conditions:

- 1) Signs placed within the right-of-way of a state trunkline located in the city of Cadillac shall comply with the permitting requirements and standards of the Michigan Department of Transportation, as applicable.
- 2) Signs shall not interfere with pedestrian or vehicular movement nor impact the public safety.
- 3) The period of display shall be limited to one week prior to an event and the day of the event.
- 4) Signs shall not be used to advertise a commercial or private business, product or service.
- 5) Signs shall not impact the ability of people to safely and efficiently exit and enter parked vehicles.
- 6) The number of signs permitted is 8.
- 7) If a corner is already "taken" by another previously permitted sign (Farmer's Market/Hot Dogs), then the DCA sign would not be allowed.
- 8) Signs need to be removed by 9:00 p.m. nightly.
- 9) Approval is through December 2012 and needs to be reapproved for 2013.

2012.182 Temporary off-premise signs approved

Motion was made by Spoelman and supported by Schippers to approve the temporary off-premise signs with the recommended conditions.

Motion unanimously approved.

City Manager Peccia asked council for their opinion on whether they felt any changes should be made to either the location or title of the public comment and public appearances sections of the agenda. Mayor Barnett suggested that both be called public comments with no stipulation that the first public comments be related to items on the agenda.

2012.183 Generic public comments sections approved

Motion was made by Spoelman and supported by Stevens to change the standard agenda to allow for two generic public comments, one at the beginning of the meeting and one at the end.

Motion unanimously approved.

INTRODUCTION OF ORDINANCES AND RESOLUTIONS

ADOPTION OF ORDINANCES AND RESOLUTIONS

City Manager Peccia told council that at the last council meeting, on July 2, 2012, a public hearing was held to vacate a public alley through the CWTA property so the property could be sold. Vance Edwards, Director of the Cadillac Wexford Transit Authority, explained to council that the public alley was not discovered until the CWTA tried to sell the property to the neighboring business. Their title company and Jim Ray, city of Cadillac GIS contractor, told them the public alley had to be vacated before the property could be sold. CWTA's attorney, Peter Doren, has tried to locate the heirs to the right-of-way but has not been successful. The legal process will be complete in August.

2012.184 Ordinance No. 2012-10 adopted, Resolution No. 2046

Motion was made by Stevens and supported by Mellema to approve the resolution to adopt Ordinance No. 2012-10 vacating a public alley.

Motion unanimously approved.

REPORTS OF BOARD AND COMMISSIONS

MINUTES OF BOARD AND COMMISSIONS

The minutes from the Wexford County Board of Commissioners meetings held May 16, and June 6, 2012 and the minutes of the Cadillac Planning Commission from the meeting held May 22, 2012 were presented to council for information only.

PUBLIC APPEARANCES

GOOD OF THE ORDER

City Manager Peccia said he and Director of Finance, Owen Roberts and Mayor Barnett attended a meeting in June with the forensic auditors in Saginaw. He said the quality of microfilm from several years of data is not good enough to use. He added there is no documentation for much of the 1990's. The records retention requirement is and all documentation will be made available. He said the forensic discussion will be added to the agenda for the next meeting and the auditor will be invited.

Council Member Mellema said he sent a letter to the chairperson of the Wexford County Board of Commissioners, a letter to Wexford County Administrator Hinton, the Wexford County Sheriff and the Cadillac News editor outlining all the city's efforts to reach out to the county. He hasn't heard from anybody and he wants the letter put on the city's website. The letter explains the reasons the millage is needed. He said it is upsetting that he has received no response and he wants to share his frustration.

Council Member Stevens said it was a nice gesture of Alan Cooper to do things better in the future but it was the city's internal problem. He wondered if McCurdy was just giving out propaganda or is the amount really \$20,000. He also thinks McCurdy's data is inaccurate.

Mayor Barnett said he has no further comments.

Council Member Schippers said she attended a memorial for Karen Lempe, a retired teacher who was active in the Carl T. Johnson Center and the Wonderland Humane Society. She will be missed. She also said that the issue that will be discussed at the next meeting will be whether or not we will pay our share of the roundabout.

Council Member Spoelman says she can see why McCurdy's firm doesn't want the audit based on the 1993 contract. If the scope of the audit has changed, she is concerned because she wasn't included in the decision. She also announced she will be attending the upcoming meeting of the Lake Mitchell Improvement Board meeting for this Saturday at the Cherry Grove Township hall at 1:30 p.m.

City Manager Peccia said the Closed Session was on the agenda as a placeholder but the documentation is not ready, so there is nothing to go into closed session for.

ADJOURNMENT

As there was no further business to come before city council, the meeting was adjourned at 10:05 p.m.

Respectfully submitted,

William S. Barnett, Mayor

Christine L. Benson, City Clerk

APPLICATION FOR BANNER PERMIT
United Way of Wexford & Missaukee Counties
 Name of Organization

23-71125 49

9/4/12
from (date) 9/24/12

9/10/12
to (date) 10/8/12

Pet Groggin
Contact person

775-3753
Telephone No.

421 ~~st.~~ S. Mitchell St. Gd. Hope

1. A description of the banner, including any legend or symbol on the banner.
2. A drawing or picture of the banner.
3. The dimensions of the banner.
4. Banner must meet construction requirements per attached city specifications.

5. A banner shall not have displayed thereon any legend or symbol which may be construed to advertise, promote the sale of, or publicize any merchandise or commodity, or to be political in nature.
 - a. The legend may contain the name of the sponsor paying for the banner if such is not an obvious advertising of and promotion of the sale of the sponsor's goods or services. Letter of the sponsor's name or a logo can be a maximum of three inches if on a single line or two-inch lettering if more than one line. The sponsor's address or directions to locations of the sponsor are not acceptable.

I HAVE READ THE ABOVE REQUIREMENTS AND UNDERSTAND IF THESE REQUIREMENTS ARE NOT MET, BANNER REQUEST WILL BE DENIED.

Signature

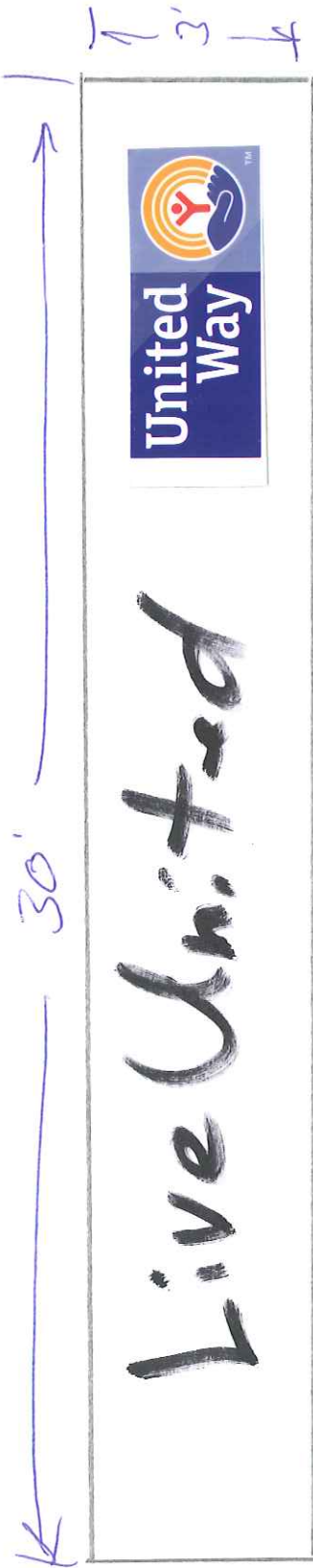
Signature _____

APPROVAL: CO 7-30-12
Clerk's Office/date

City Manager/date

Public Works/date

Mich. Dept. of Trans./date





**MEETING MINUTES
CADILLAC PLANNING COMMISSION
June 25, 2012
7:00 P.M.**

CALL TO ORDER

Chairman Putvin called the meeting to order at 7:00 p.m. and requested roll call.

ROLL CALL

MEMBERS PRESENT: Schichtel, Barnett, Putvin, Fent, Peterson, VanLente, Smith and Champlin
MEMBERS ABSENT: Gregg
STAFF PRESENT: Adams

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was recited.

APPROVAL OF THE PLANNING COMMISSION MINUTES AND AGENDA

Motion by Champlin, supported by Fent, to approve the May 22, 2012 meeting minutes and meeting agenda of June 25, 2012. Unanimous approval on a roll call vote.

PUBLIC COMMENTS

None.

PUBLIC HEARINGS

None.

NEW BUSINESS

1. Revisions to the Sign Ordinance – Chairman Putvin referred this matter to Adams for comment.

Adams stated Section 46-664(d)(2) of the City Zoning Ordinance provides for the use of public right-of-way for the placement of off-premises signs associated with the activities and events of governmental agencies and non-profit organizations. The signs are erected for purposes of alerting motorists to short-term special events and programs determined to be of general public interest. With the exception of billboards, the ordinance does not allow similar signs for private businesses.

Adams stated the City Council has discussed the possible need of broadening the provisions of the section allowing the regulations to apply to private sector businesses and others provided applicants can demonstrate that a general public interest will be served. He stated concern has

been raised regarding the fact that some organizations, such as the seasonal farm market, do not appear to meet the requirements of the ordinance but have been permitted to erect off-premises signs on Mitchell Street. The Planning Commission is being asked to review the language of Section 46-664(d)(2) to determine if changes are needed.

Using a PowerPoint presentation Adams provided a summary of the draft amendments to the zoning ordinance governing off-premises signs. Adams noted that a full copy of the amendments was included in the Planning Commission packet, as previously delivered to commissioners. Adams presented the following:

- a) Definition of off-premises signs as provided in the ordinance
- b) Summary of Section 46-664 governing off-premises signs
- c) Graphic examples of off-premises signs
- d) Listing of the pros and cons of off-premises signs
- e) The types of off-premises signs found in the city such as billboards, government signs, directional signs, and sandwich board signs.
- f) Detail on the purpose and approval standards for signs of general public interest
- g) Graphic examples of signs of general public interest
- h) Current issues associated with off-premises signs including the farm market signs and the signs desired by LJR Enterprises (a Lake Cadillac shoreline food vendor)
- i) Concerns by the Downtown Development Authority on off-premises signs
- j) Proposed ordinance amendments including:
 - 1) The elimination of off-premises directional signs in the commercial and office zone districts, except for the B-2 district
 - 2) Classification of off-premises government signs and signs of general public interest into temporary and permanent categories, limiting permanent signs to public agencies and public organizations
 - 3) Allowing non-profit agencies and organizations to place off-premises temporary signs in all districts with other parties limited to commercial and office districts
 - 4) The standards proposed for temporary and permanent off-premises signs

Adams requested the Planning Commission set a public hearing date of July 23, 2012 for the consideration of the proposed amendments as presented.

Chairman Putvin referred this matter to the commission for discussion.

Mayor Barnett commented on the issues faced by the city council when receiving requests for the approval of off-premises signs noting that it has been somewhat problematic. He noted, for instance, that certain ambiguities under the present regulations such as the determination of what constitutes a public benefit may result in some parties receiving approval for off-premises signs while others of a similar or comparable status are denied.

VanLente commented that it should be possible to limit the number of off-premises signs on Mitchell Street, as well as their locations, in order to avoid conflicts and visual clutter.

Fent stated it would be appropriate to find out how the public feels on this matter. Therefore, Fent moved to set a public hearing date of July 23, 2012 for the receipt of public comments on

the proposed sign amendments as presented. The motion was supported by VanLente. The motion was unanimously approved on a roll call vote.

OLD BUSINESS

Neighborhood Conditions Study - Adams distributed hard copies of the Neighborhood Conditions Study which was presented at the commission's May meeting.

There was no discussion on the item.

PUBLIC COMMENTS

None.

TABLED ITEMS

None.

COMMISSION/STAFF COMMENTS

Mayor Barnett stated the city council recently adopted an ethics ordinance which will have application to the members of all city boards and commissions. Copies of the adopted ordinance will be provided at a future date.

ADJOURN

There being no additional business, Chairman Putvin adjourned the meeting at 7:56 p.m.

August 6, 2012

Council Communication

Re: Cadillac News Requested Editorial Regarding Public Safety Millage

On August 1st the Cadillac News requested an editorial regarding the upcoming City public safety millage ballot question that is on the August 7th ballot, and below is what was submitted to the newspaper. Please note that the paper did request that the editorial be 800-words or less, and that it be submitted no later than August 2nd.

Submittal to the Cadillac News per their request:

In the early 2000's the City administration and Council began exploring innovative ways to develop additional resources to aid in the City's ability to continue to provide public safety services, and subsequently commissioned studies in part to help ascertain what the best operational structure would be for the City in comparison to our community's police and fire activity levels, which unfortunately are consistently rising annually.

Plante and Moran, the consulting firm that conducted the most recent study indicated that restructuring to a two chief system was what community and organizational stakeholders preferred versus a public safety director overseeing both departments. The public safety team, which was created to coordinate the study and comprised of representatives from the City Council, City staff, and community stakeholders, met with the consultants, analyzed the results, and developed recommendations that concurred that the two chief structure is preferred. Important to note however, is that the team did recommend that the two chief structure not be pursued until positive revenue trends support the change, or a new revenue source such as a dedicated millage restricted only to fund police and fire operations, and that an interim public safety director structure would be implemented until at least one of those factors were to occur since resources are not currently available.

In May 2012, the City Council was briefed by Plante and Moran and a representative from the public safety team that included recommendations that requested a special millage to fund an "ideal" structure that was defined as a system with a police and fire chief without losing any police and fire positions, or a "best available" option that would place an interim public safety director until the City experiences consecutive years of positive revenue growth or develops a new special millage restricted for funding police and fire operations. The City Council was advised that our law enforcement activities have been increasing annually and our police have become more of a reactive department versus a proactive department due to the current resources and staffing levels. In March 2012 the Council was also informed that the City's daytime population exceeds that of the entire County (excluding the City), requiring that our services and resources serve a larger population base than that of solely our residential population.

Subsequently, in discussing and developing ballot language that requests a new millage specific for the funding of police and fire operations, the Council focused on the following as objectives should the proposal be approved by the voters:

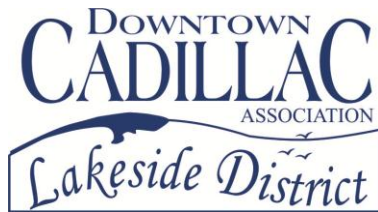
- To maintain and enhance police and fire services by providing the opportunity to make structural changes to both Police & Fire Departments, including the implementation of a 2-chief system
- To maintain and enhance police services by providing the opportunity to add resources to the road to aid in patrol and other law enforcement matters
- To generally aid police & fire operations, given reductions in general fund revenues, the primary source of operational capital

The City Council determined that requesting a millage restricted only to funding police and fire operations is in the City's best interests. At the same time, the City Council also publicly discussed that additional future collaboration needs to take place between the City and County law enforcement agencies.

In determining what rate should be requested, the City Council was very sensitive to wanting to request as low of a rate as possible, and unanimously agreed that a rate of .65 mills, or \$.65 per \$1,000 of taxable value would be very helpful in aiding the police and fire departments. This would add approximately \$22.36 per year to an average tax bill based on an average Cadillac home's taxable value of \$34,400. Accordingly, the City Council approved the following language to be added to the August 7, 2012 ballot:

CITY OF CADILLAC, WEXFORD COUNTY
POLICE AND FIRE MILLAGE PROPOSAL

Shall the tax limitation imposed on all taxable real and tangible personal property within the City of Cadillac, Wexford County, Michigan, be increased for said City in an amount not to exceed .65 mill (\$0.65 on each \$1,000 of taxable value) for two (2) years, 2013 to 2014 inclusive, to provide funds for road patrol services and for operating, equipping and purchasing for the police and fire departments and any other fire or police purpose authorized by law; and shall the City levy such new additional millage for said purposes? The estimate of the revenue the City will collect if the millage is approved and levied in the 2013 calendar year is approximately \$160,875. A small portion of the revenue may be required to be distributed to the City of Cadillac Downtown Development Authority, Local Development Finance Authority and Brownfield Redevelopment Authority.



201 N. Mitchell, Suite 102
Cadillac, MI 49601
Phone: 231-775-9776
Fax: 231-779-5933
admin@downtowncadillac.com
www.downtowncadillac.com

June 27, 2012

Dear City Council Members,

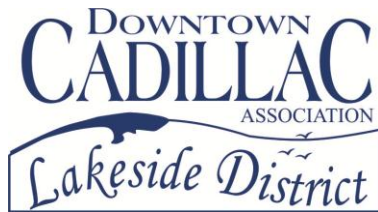
The Downtown Cadillac Association requests the approval of a Craft Beer Festival and closure of Lake and Harris Street area to host our upcoming **Fall Fever Festival on September 22-23, 2012.**

- City Park & Pavilion Use Permit for September 22-3 (see attached).
- Craft Beer Tasting Festival Permit – request your approval to secure a beer & wine special one day permit, 2pm – 11pm (see attached layout per State requirements).
- Tent Closure (30'x105') - Lake Street, from Cass to Harris Street – closure requested from 8am September 22 to 4pm September 23. We will need electrical outlets in area.
- Criss Cakes Flying Pancake Breakfast – Sunday, 9am – 1pm under the tent on Lake Street – no permit required, only reference.
- Harris Street, From Lake Street to Elk Alley – closure requested on September 22, from 10am to 6pm for Classic Car show 12noon to 4pm, & 4pm Parade
- Parade Set-up – additionally close Lake Street from Harris Street to Pine Street – closure requested for parade set-up 1pm – 6pm September 22. Request that the fire engines be turned to the East. (parade permit attached)
- Parade Route – starting on Harris, East to Mitchell, North to Pine/Chestnut, West onto Pine/Chestnut, ending at Linden Street – closure requested for parade route from 3pm to 5pm.

We would also like to request that the Council consider supporting this event with the approval of our request.

Event Agenda:

- Saturday an array of events will start at 12noon until 11pm to include:
 - Craft Beer Festival from 3pm to 11pm – brewers will be available at 3pm, live entertainment will start at 5pm (3-5pm, individual tastings available; after 5pm \$22 at door; \$5 Cadillac Craft Beer glasses; presale tickets will be offered at \$20 for 5, 6oz tastings)



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- NEW - Craft Soda & Ice Cream Tent from 2pm – 6pm, craft brewer also offers craft soda, with Michigan Made ice cream by Moomer's for an ice cream float (\$4-6 per float)
 - Fall Fever Classic Car Show from 12noon until 4pm (\$10 entry, trophies)
 - PeeWee Dog Show, Race, Contest at 1pm and 3pm (free, prizes)
 - Bounce Houses from 12-6pm, \$3 unlimited bracelet
 - Kids face Painting, Free Balloons, & Games from 12-4pm, free
 - Youth Musicians have been invited to play in the City Park from 2-3pm & 5-6pm
 - Fall Fever Parade, 4pm, \$10 entry for Profit, Free to non-profits
 - Fall harvest and food booths – showing off and selling the best of local harvest & food available
 - 'Catch the Fever' Fall Fever Downtown Drawing - enter to win starting September 1, prizes will be awarded on September 22 after the parade in the City Park. Participating stores to give away over \$1000 of prizes throughout the day.
- Sunday events will include:
 - Under the tent will host the world famous Criss Cakes, Flying Pancakes from 9am – 1pm, hosted by the Cadillac Band Boosters. This will be a great finale to a fun weekend. All you can eat, \$7 adults, \$5 children 5-10, free 4 under.
 - Crop Walk will also be on Sunday in the Pavilion area from 11-4pm, we are collaborating the promotion of our events.

We hope to see a our Council members down in the park. For more information on this event as the details are finalized, please go to www.downtowncadillac.com

We appreciate your continued support and look forward to a successful Fall Fever Festival event.

Sincerely,

The DCA Board of Directors

Paul King , President, Cadillac News
Lincoln VanDrie, Vice President, Toy Town
Beth Bosscher, Treasurer, The Shay Station
Deb Ballard, Director, FirstBank of Cadillac
Donna Molnar, Director, Fifth Third Bank
Kristine Anderson, Director, Atomic Closet
Gregg Carner, Director, Brinks Art & Framing
Joy VanDrie, Executive Director

**Downtown Development Authority (DDA)
Business Improvement District (BID) Board**
Regular Meeting
June 27, 2012

A regular meeting of the Cadillac Downtown Development Authority (DDA) and Business Improvement District (BID) Board was held on Wednesday, June 27, 2012 in the municipal complex conference room, 200 N. Lake Street, Cadillac, Michigan.

MEMBERS PRESENT: Coffey, Huckle, LeVand, Peccia, Trombly, Carner, and Gaunt

ALSO PRESENT: Staff: Adams and Roberts

Public: State Representative Potvin and Mayor Barnett

I. CALL TO ORDER, MINUTES and REPORTS The meeting was called to order by Chairperson LeVand at 7:30 a.m.

- A. Minutes of the May 30, 2012 Meeting. Motion made by Coffey and supported by Trombly that the minutes of the May 30, 2012 meeting be approved as presented. Motion unanimously carried.
- B. Treasurer's Report. Peccia reported for the month of May, 2012 expenses of normal wages and fringes in the DDA Operating Fund. Revenue of \$1,415.00 in donations was recorded for the flower basket program. In the DDA Capital Projects Fund there was no revenue or expenses recorded. In the Auto Parking Fund, there was \$30.00 collected for parking violations. Expenses included normal Parking Enforcement Officer wages and fringes, data processing and depreciation costs. Motion by Huckle and supported by Coffey to approve the Treasurer's report. Motion unanimously carried.

Following the Treasurer's Report, Owen Roberts, Cadillac's Financial Officer, gave a brief overview of the DDA's financial status and future availability of funds for capital projects.

II. OLD BUSINESS

- A. Financing of Downtown Parking Lots (Construction and Maintenance). The following people volunteered to serve on a DDA subcommittee to identify a recommended program for the financing of the construction and maintenance of public parking lots in the downtown: Huckle, Trombly, and LeVand. Board members suggested that VanDrie would also be an excellent participant and recommended his inclusion on the subcommittee. Adams stated that Hermann Suhs, owner of Hermann's European Café and former DDA Board member, previously indicated interest in serving on a financing subcommittee. Board members indicated their concurrence with the inclusion of Mr. Suhs, noting that he owns several downtown properties and businesses and has been a downtown business owner for many years. Adams will contact Mr. Suhs regarding the committee and a future meeting date. Adams stated he will arrange a

subcommittee meeting date and time.

III. NEW BUSINESS

- A. Strategic Planning Session – Chairperson LeVand introduced the idea of having the DDA facilitate a strategic planning program involving other local organizations such as the Downtown Fund and city for purposes of identifying desired physical improvements within the core downtown. He suggested each group be given a base map (aerial) of the downtown along with historic market information (findings of prior market studies) prepared for the city and downtown as tools for helping each group identify the location and nature of physical changes/improvements desired for the downtown. Following their individual efforts, the various groups would then meet collectively to discuss recommended improvements with the goal of developing a unified plan of action (unified vision) that may be used in future planning and development efforts.

Huckle stated he was supportive of the idea and suggested that it may be more expedient to have the various groups meet collectively at the beginning for purposes of achieving a desired vision. However the process is accomplished, he felt the effort would be a positive step for the DDA and downtown.

Adams will have the aerial photos of the downtown printed using the photos from the city's geographic information system. He will also prepare summaries of the salient findings and recommendations of past market studies.

A tentative date of August 23, 2012 was set for a DDA workshop to identify ideas on the physical development and redevelopment of the core downtown.

IV. DIRECTOR'S REPORT

Adams reviewed the June "Downtown Happenings" report noting the following:

- A. J. Seward Johnson Sculpture Exhibit – has been highly successful with an estimated 6,000 plus visits recorded to date.
- B. Business Activity:
 - a) Uncle Don's Apple Pie, LLC – their location for the operation of a small distillery of spirits at 805 N. Mitchell Street was approved by the City Council.
 - b) Abbies First Cut Barber Shop – Christina Jenkins plans to open a barber shop at 101 E. Pine Street. This location was formerly occupied by Don's Barber Shop.
- C. DDA Board Members – David Gaunt and Gregg Carner were appointed to the DDA Board by the City Council.
- D. Sound Garden Improvements – the Cadillac Area Garden Club has received City Council approval to place a human sundial, toddler garden, gazebo, and additional pathway sections at the Sound Garden.
- E. South Gateway Light Poles – have been replaced with single-head poles. Banners will not be placed on the poles.

V. COMMUNICATIONS/OTHER ITEMS

- A. No communications.
- B. Coffey, Carner, and Schultz were appointed to serve on a sub-committee to review the (temporarily suspended) Retail Bounty Program Guidelines to determine the need for possible revisions and/or clarification regarding the parties eligible for receipt of a bounty.

VI. TABLED ITEMS

- A. Wayfinding signs – Adams stated information on this item such as banner styles and costs is still being obtained. No action was taken. The item will be examined at a future meeting.

VII. PUBLIC COMMENTS

- A. State Representative Phil Potvin thanked the Board for their dedication and efforts in promoting the well-being of the city and regional area. He affirmed his desire to assist however possible and encouraged Board members and the public to contact him as needed. He mentioned the lighthouse project, as previously proposed and partially funded by area manufacturers, remains a goal. It is hoped a small scale working lighthouse, designed to represent a symbol of the importance of area industries, can be placed along or near the Lake Cadillac shoreline.

VIII. ADJOURNMENT

There being no further business before the Board, the meeting adjourned at 8:49 a.m.

Respectfully submitted,
Jerry Adams for
Marcus Peccia

fax to: 775-8753

APPLICATION FOR BANNER PERMIT

Downtown Cadillac Association
Name of Organization
711-3609
If Non-profit, please provide Identification No.
Sept 10, 2012 Sept. 24, 2012
from (date) to (date)
Joy VanDine 920-5189
Contact person Telephone No.
201 N. Mitchell St., Cadillac, MI 49601
Address of Contact person

THESE REQUIREMENTS MUST BE INCLUDED WITH THIS REQUEST

1. A description of the banner, including any legend or symbol on the banner.
2. A drawing or picture of the banner.
3. The dimensions of the banner.
4. Banner must meet construction requirements per attached city specifications.

UNDER MICHIGAN DEPARTMENT OF TRANSPORTATION GUIDELINES:

5. A banner shall not have displayed thereon any legend or symbol which may be construed to advertise, promote the sale of, or publicize any merchandise or commodity, or to be political in nature.
 - a. The legend may contain the name of the sponsor paying for the banner if such is not an obvious advertising of and promotion of the sale of the sponsor's goods or services. Letter of the sponsor's name or a logo can be a maximum of three inches if on a single line or two-inch lettering if more than one line. The sponsor's address or directions to locations of the sponsor are not acceptable.

I HAVE READ THE ABOVE REQUIREMENTS AND UNDERSTAND IF THESE REQUIREMENTS ARE NOT MET, BANNER REQUEST WILL BE DENIED.

Signature

APPROVAL:

CL 1-5-12
Clerk's Office/date01/07/12
City Manager/dateAV 11/6/12
Public Works/date

Mich. Dept. of Trans./date

30' x 3'

Downtown Cadillac's

FALL FEVER FESTIVAL

last weekend of September

August 6, 2012

Council Communication

Re: Return Activated Sludge Pump Replacement

A return activated sludge pump that is critical to the operation of the Wastewater Treatment Facility failed recently. It was assumed that the pump could be rebuilt, so it was shipped to the manufacturer's authorized sales and service distributor for Michigan. When the pump was disassembled to be rebuilt, it was found to be in worse condition than originally thought and unable to be repaired.

When the company, Kennedy Industries, reported this information to the City, they also submitted a quote for a new replacement pump. Two additional quotes were sought for similar pumps that would meet the required specifications needed for the work. The following quotes were received:

- | | |
|-----------------------------------|--------------|
| 1. Kennedy Industries | \$9,640.00 |
| New Hudson, MI | |
| 2. HISCO Pump Inc. | \$9,615.00 * |
| Bloomfield, CT | |
| 3. Belly River Corporation | \$9,594.00 * |
| Appleton, WI | |

** Amounts do not include shipping; Kennedy Industries is delivered price.*

Recommended Action

It is recommended that due to the time-sensitive nature of needing to quickly get a replacement pump installed and working, competitive bidding be waived and the purchase of a new return pump be awarded to Kennedy Industries in the amount of \$9,640.00, which is the lowest quoted price in accordance with the local vendor preference ordinance. Funds are available in the Water and Sewer Fund for this purchase.

August 6, 2012

Council Communication

Re: Street Line Marking

On July 31, 2012 the City of Cadillac held a bid opening on the above referenced project. The bids were based on unit prices applied to estimated quantities. The following bids were received:

- | | | |
|----|--|------------|
| 1. | P.K. Contracting
Lake City, MI | \$9,156.25 |
| 2. | Kenmark, Inc.
Buckley, MI | \$9,380.00 |
| 3. | M & M Pavement Marking, Inc.
Grand Blanc, MI | \$9,594.00 |

Recommended Action

It is recommended that the contract for street line marking be awarded to P.K. Contracting of Lake City, MI in accordance with their bid. Funds for this project are available in the Local Street Fund and Major Street Fund.